24STCV02011 24STCV02011

County: los-angeles

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Case Number: 24STCV02011 Hearing Date: August 10, 2026 Dept: 11

Preliminary

Approval of Class Action Settlement

Department

SSC-11

Roberto

Armando Palomo v. Los Angeles LGBT Center

Case No.: 24STCV02011

Hearing: August 10,

2026

TENTATIVE

RULING

Continue

for counsel to address the issues noted in the accompanying checklist.

BACKGROUND

This is a wage and hour class action. On January 25, 2024, Roberto Armando Palomo (“Palomo”), individually and on behalf of all others similarly situated, filed a putative class action against Defendant Los Angeles LGBT Center (“Defendant” or “Center”) and Does 1 through 100 asserting eleven causes of action for violations of the California Labor Code and California Business and Professions Code, Case No. 24STCV02011 (“Palomo Class Action”). On

April 2, 2024, Palomo filed a First Amended Class Action Complaint ("FAC").

On April 3, 2024, Palomo filed a separate action against Defendant under the Private Attorneys General Act ("PAGA") for civil penalties, Case No. 24STCV08409 ("Palomo PAGA Action").

On April 30, 2024, Palomo filed a Notice of Related Case, listing the Palomo PAGA Action. On May 8, 2024, pursuant to the stipulation of the parties, the Court ordered the Palomo Class Action and the Palomo PAGA Action to be consolidated and designated the Palomo Class Action (24STCV02011) as the lead case.

Defendant filed an Answer to the Palomo PAGA Action on May 30, 2024, and an Answer to the Palomo Class Action on June 27, 2024.

On November 18, 2024, the parties informed the Court that the Palomo Class Action and Palomo PAGA Action were mediated together with two other cases filed against Defendant in the Los Angeles Superior Court: Kyle Neely v. Los Angeles LGBT Center ("Neely Action") (21STCV28073) initiated on July 30, 2021, and Rebecca Reyes Lomeli, et al. v. Los Angeles LGBT Center ("Lomeli PAGA Action") (24STCV08581) initiated on April 5, 2024. As a result of the global mediation with Mark S. Rudy, Esq., held on September 24, 2024, a settlement of all four cases was reached. (Declaration of Brandon M. Chang ("Chang Decl."), ¶14.) A copy of the fully executed Class and PAGA Settlement Agreement ("Settlement Agreement" or "Agreement") is attached to counsel Chang's supplemental declaration, filed on October 30, 2025, as Exhibit 1. As part of the Settlement Agreement, the parties agreed to the filing of an amended complaint.

On October 13, 2025, the Court granted leave for the parties to file an amended complaint, pursuant to the stipulation of the parties, in order to remove Palomo as a named plaintiff, substitute Rebecca Reyes Lomeli ("Lomeli") and Danita Goss ("Goss") as named plaintiffs, and to effectively consolidate the Neely Action, Lomeli PAGA Action, Palomo Class Action, and Palomo PAGA Action . On October 14, 2025, Lomeli and Goss (jointly "Plaintiffs"), individually and on behalf of all others similarly situated, filed the Operative Second Amended Class and Representative Action Complaint ("SAC") against Defendant and Does 1 through 100 asserting the following causes of action: (1) failure to pay overtime wages; (2) failure to pay minimum wages;

(3) failure to provide meal periods; (4) failure to provide rest periods; (5) waiting time penalties; (6) wage statement violations; (7) failure to timely pay wages; (8) failure to indemnify; (9) failure to pay interest on deposits; (10) unfair competition; (11) violation of Labor Code §226.8; and (12) civil penalties under PAGA for violations of Labor Code sections 210, 226.3, 558, 1174.5, 1197.1, and 2699, et seq.

Now before the Court is the Motion for Preliminary Approval of Class and Representative Action Settlement ("MPA"), filed on October 23, 2025. On October 30, 2025, Plaintiffs filed a Notice of Errata, along with corrected versions of the Settlement Agreement, MPA, and proposed Order.

SETTLEMENT

CLASS DEFINITION

.

"Class #1" means all persons employed by Defendant in California and classified as a non-exempt, hourly-paid employee who worked for Defendant during the Class Period #1. (¶1.6)

o "Class Period #1" means the period from July 30, 2017, through the date of Preliminary Approval. (¶1.8)

.

"Class #2" means all persons employed by Defendant in California and classified as an exempt, salaried employee who worked for Defendant during the Class Period #2 in one of the job positions identified in Exhibit B attached to the Agreement. (¶1.7)

o "Class Period #2" means the period from January 25, 2020, through the date of Preliminary Approval. (¶1.9)

.

"Aggrieved Employees #1" means all persons employed by Defendant in California and classified as a non-exempt, hourly-paid employee who worked for Defendant during the PAGA Period #1. (¶1.4)

o "PAGA Period #1" means the period from July 23,

2020, through the end date of Class Period #1.
(¶1.38)

.

"Aggrieved
Employees #2" means all persons employed by Defendant in California and classified as an exempt, salaried employee who worked for Defendant during the PAGA Period #2 in one of the job positions identified in Exhibit B attached to the Agreement. (¶1.5)

o "PAGA Period #2" means the period from January 25, 2023, through the end date of Class Period #2. (¶1.39)

.

"Class
Counsel" means David D. Bibiyan and Vedang J. Patel of Bibiyan Law Group, P.C. (¶1.10)

o The definition of Class Counsel in the Settlement Agreement at ¶1.10 and the Proposed Order at ¶3 should include counsel Brandon M. Chang, whose declaration is submitted in support of the Motion.

.

The
Parties agree that class certification and representative treatment is for purposes of this Settlement only. (¶13.1)

TERMS
OF SETTLEMENT AGREEMENT

The essential terms are as follows:

.

The
Gross Settlement Amount is $2,470,000, non-reversionary. (¶¶1.25, 4.1)

o Escalator Clause: Based on its records, Defendant estimates that, as of the date of the mediation on September 24, 2024, (1) there are 1560 total Class Members and 183,417 Total

Workweeks during Class Period #1 and Class Period #2, and (2) there are 940 Aggrieved Employees #1 and Aggrieved Employees #2 who worked 48,478 total Pay Periods during PAGA Period #1 and PAGA Period #2. (¶9) Defendant represents that as of the date of the mediation on September 24, 2024 there are no more than 183,417 Workweeks worked during the Class Period #1 and Class Period #2, collectively. In the event the total number of Workweeks worked by Class #1 during Class Period #1 and by Class #2 during Class Period #2 collectively increases by more than 10%, or 18,341 Workweeks, then Defendant shall have the option, in its sole discretion, to: (1) increased the Gross Settlement Amount proportionally by the number of Workweeks in excess of 201,758 Workweeks multiplied by the Workweek Value; or (2) end both Class Period #1 and Class Period #2 on the date that the number of Workweeks worked by the Class #1 during Class Period #1 and by Class #2 during Class Period #2 reaches 201,758. The Workweek Value shall be calculated by dividing the originally agreed-upon Gross Settlement Amount ($2,470,000.00) by 183,417, which amounts to a Workweek Value of $13.47. Thus, for example, should there be 210,000 Workweeks in which Class #1 worked during Class Period #1 and Class #2 worked during Class Period #2, then the Gross Settlement Amount shall be increased by $111,019.74 (210,000 Workweeks – 201,758 Workweeks) x $13.47 per Workweek). Should Defendant elect option (2) above, Defendant must notify counsel for Plaintiffs, in writing, no later than 30 days prior to the hearing on Plaintiffs' Motion for Preliminary Approval. (¶9.1)

§

The parties must resolve any uncertainty regarding the Class/PAGA Periods prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the administrator must review and verify the workweek total and confirm the end dates of the Class/PAGA Periods, revise the Class and PAGA Period definitions if needed, and remove the period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are modified to match any alterations to the Settlement Agreement.

.

The Net Settlement Amount ("Net") ($1,405,166.67) is the GSA minus the following:

- o Up to $823,333.33 (1/3 of GSA) for attorney fees (¶4.2.2);

o Up to $60,000
for costs of litigation (Ibid.);

o Up to $15,000 for a Class Representative Service Award ($7,500 to each named Plaintiff) (¶4.2.1);

o Up to $16,500 for settlement
administration costs (¶4.2.3);

o
Payment of $150,000
PAGA penalty ($112,500 or 75% to the LWDA) (¶4.2.5).

·
Employer
Taxes. Defendant will
separately pay any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (¶4.1)

· There is no claim form requirement. (¶4.1)

·
"Response
Deadline" means forty-five (45) days after the Administrator mails Notice to Class Members and Aggrieved Employees, and shall be the last date on which Class Members may: (a) mail Requests for Exclusion from the Settlement, or (b) mail his or her Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 15 days beyond the Response Deadline has expired. (¶¶1.47, 8.4.4) The
same deadlines apply to submission of workweek disputes, which must be mailed to the Administrator. (¶8.6)

o Defendant will have, in its sole discretion, the
right to void and withdraw from the settlement if three percent (3%) or more of the Class Members exercise their right to opt out of the Settlement. (¶10)

·
Individual
Class Payment Calculations.

An Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period #1 and Class Period #2, and (b) multiplying the result by each Participating Class Member's Workweeks. (¶4.2.4)
The Administrator will calculate the total number of Workweeks worked by Class #1 during Class Period #1 and by Class #2 during Class Period #2 by: (a) adding the total number of Workweeks in Class Period #1 and the total number of Workweeks in Class Period #2. (¶4.2.4.1) The Administrator will calculate the Participating Class Member's Workweeks by: (a) adding the number of Workweeks the Participating Class Member worked for Defendant during Class Period #1 and during Class Period #2. (¶4.2.4.2) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (¶4.2.4.4)

o Tax Allocation:
20% wages; 80% interest and penalties. (¶4.2.4.3)

· Individual PAGA Payment: The
Administrator will calculate the total number of PAGA Period Pay Periods worked by all Aggrieved Employees #1 during PAGA Period #1 and Aggrieved Employees #2 during the PAGA Period #2 by: adding the number of pay periods in PAGA Period #1 and the number of pay periods in PAGA Period #2. (¶4.2.5.1)
The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees #1 and Aggrieved Employees #2's share of PAGA Penalties, $37,750.00, by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees #1 during PAGA Period #1 and by Aggrieved Employees #2 during PAGA Period #2, then (b) multiplying the result by each Aggrieved Employees #1's and Aggrieved Employees #2's PAGA Period Pay Periods. (¶4.2.5.2) If the Court approves PAGA Penalties of less than the amount requested, the Administrator will allocate the remainder to the Net Settlement Amount. (¶4.2.5.3)

o
Tax Treatment: The Administrator will report the Individual PAGA Payments on IRS 1099 Forms. (¶4.2.5.3)

·

Funding
of Settlement Defendant shall fully fund the Gross

Settlement Amount, and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than 14 days after the Effective Date. (¶5.3)

o "Effective Date" means the later of: (a) the Court enters a Judgment on its Order Granting Final Approval of the Settlement; and (b) the Judgment is final. The Judgment is final as of the latest of the following occurrences: (a) if no Participating Class Member objects to the Settlement, 65 days after the day the Court enters Judgment; (b) if one or more Participating Class Members objects to the Settlement, the day after the deadline for filing a notice of appeal from the Judgment; or if a timely appeal from the Judgment is filed, 10 days after the appellate court affirms the Judgment and issues a remittitur. (¶1.21)

.

Distribution. Within 14 days after Defendant fund the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments, and the Individual PAGA Payments. (¶5.4)

.

Uncashed

Settlement Checks. The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. The Administrator will cancel all checks not cashed by the void date. (¶5.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Office, Unclaimed Property Fund in the name of the Class Member, thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure section 384(b). (¶5.4.3)

.

Phoenix

Class Action Administration Solutions will act as administrator for the settlement. (¶¶1.2, 8.1; see Declaration of Jodey

Lawrence.)

· The proposed Settlement Agreement was submitted to the LWDA on October 30, 2025. (Chang Supp. Decl., ¶8, Ex. 4.)

·

Participating class members and the named Plaintiffs will release certain claims against Defendant. (See further discussion below.)

ANALYSIS
OF SETTLEMENT AGREEMENT

·

Does a presumption of fairness exist?

1. Was the settlement reached through arm's-length bargaining? Yes. Around April 5, 2022, Kyle Neely and Defendant attended a mediation presided over by Mark S. Rudy, Esq., which did not result in a settlement. (Chang Decl., ¶5.) On September 24, 2024, Palomo, Lomeli, Goss, and Defendant participated in a second mediation presided over by Mark S. Rudy, Esq, which resulted in global settlement of all four actions. (Id. at ¶14.) A copy of the fully executed Class and PAGA Settlement Agreement ("Settlement Agreement" or "Agreement") is attached to counsel Chang's supplemental declaration, filed on October 30, 2025, as Exhibit 1.

2.
Were investigation and discovery sufficient to allow counsel and the court to act intelligently? Yes. Class counsel represents that, prior to mediation, Plaintiffs obtained, through informal discovery: (1) a sampling of time and payroll records for putative Class Members; (2) a class list of hire dates, termination dates, and job positions worked by putative Class Members; (3) a collective bargaining agreement ("CBA") from the relevant time period; and (4) all policy documents pertaining to Plaintiffs available to Defendant. (Chang Decl., ¶15.) According to Class Counsel, settlement was reached after factual and legal investigation and research; the exchange of informal discovery; negotiation regarding the scope of informal discovery; exchange of documents and information that included review of time and pay records and analysis thereof with the aid of Plaintiffs and expert consultant;

analysis of shifts and Workweeks worked by Class Members in the Class Periods, analysis of the number of pay periods and number of Aggrieved Employees in the PAGA Periods for calculating PAGA penalties, number of Class Members eligible for wage statement penalties and waiting time penalties; an analysis of Defendant's financial ability to fund the settlement; an analysis of Plaintiffs' employment records; extensive correspondence and communication between counsel; a review of pleadings, evidence and rulings in similar actions litigated elsewhere in the state; a review of similar cases in the same industry elsewhere in the country; and preparation for and attendance at two full-day mediation sessions, followed by further discussions and coordination to finalize the terms and conditions of the general settlement parameters agreed to by the Parties. (Id. at ¶25.)

Provide more information regarding the sample, such as the percentage of data reviewed. Demonstrate that the sample is statistically reliable.

3. Is counsel experienced in similar litigation? Yes. Class Counsel represent that they are experienced in class action litigation, including wage and hour class actions. (Chang Decl., ¶¶55-58; Declaration of David D. Bibiyan, ¶¶2-15.)

4. What percentage of the class has objected? This cannot be determined until the fairness hearing. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, [“Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.”].)

CONCLUSION: The settlement is entitled to a presumption of fairness.

.

Is the settlement fair, adequate, and reasonable?

1. Strength of Plaintiff’s case. “The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Class Counsel

provided information, summarized below, regarding the potential value of each claim asserted:

Violation	Potential Exposure
Unpaid Wages (Overtime)	$8,441,798
Unpaid Wages (Regular Rate)	$108,592
Meal Period Violations	$4,259,196
Rest Period Violations	$3,683,936
Wage Statement Violations	$2,423,900
Waiting Time Penalties	$2,283,331
Failure to Indemnify	$0

PAGA
Penalties

$2,187,240

TOTAL

$23,387,933

(Chang
Decl., ¶¶28-48.)

2. Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 [“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”].)

4. Amount offered in settlement. Plaintiff calculated Defendant’s potential exposure at $23,387,993. The $2,470,000 settlement amount represents approximately 10.6% of Defendant’s potential exposure, which is in the ballpark of reasonableness.

The $2,470,000 settlement amount, if reduced by the requested deductions, will leave $1,405,166.67 to be divided among approximately 1,560 class members. The resulting payments will average $900.75 per class member [$1,405,166.67 Net / 1,560].

5. Extent of discovery completed and stage of the proceedings. As indicated above, at the time of the

settlement, Class Counsel conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, are experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the final fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed "fair, adequate, and reasonable."

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Scope of the release

Effective upon entry of Judgment, the Order granting Final Approval of this Settlement, and on the date when Defendant fully funds the entire Gross Settlement Amount and fund all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiffs, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶5)

.

Class #1 Release:
For the duration of Class Period #1, all Participating Class Members of Class #1, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties from all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint in the Action and/or Neely PAGA Notice(s), Lomeli PAGA Notice(s) and/or the Palomo PAGA Notice(s), including: (1) all claims for failure to pay overtime wages; (2) all claims for failure to pay minimum wages; (3) all claims for failure to provide meal periods, or compensation in lieu thereof; (4) all claims for failure to provide compliant

rest periods, or compensation in lieu thereof (5) all claims for the failure to pay wages due upon termination or resignation; (6) all claims for non-compliant wage statements; (7) all claims for failure to reimburse business expenses; and (8) all claims asserted through California Business & Professions Code section 17200, et seq. arising out of the Labor Code violations referenced in the Operative Complaint in the Action.
(¶6.2)

.

Class #2 Release:
For the duration of Class Period #2, all Participating Class Members of the Class #2, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties from all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint in the Action and/or
Palomo PAGA Notice, Lomeli PAGA Notice(s) and/or the Neely PAGA Notice(s) including: (1) all claims for failure to pay overtime wages; (2) all claims for failure to pay minimum wages; (3) all claims for failure to provide meal periods, or compensation in lieu thereof; (4) all claims for failure to provide compliant rest periods, or compensation in lieu thereof (5) all claims for the failure to pay wages due upon termination or resignation; (6) all claims for non-compliant wage statements; (7) all claims for failure to timely pay wages during employment; (8) all claims for failure to reimburse business expenses; (9) all claims for failure to pay interest on deposits; (10) all claims asserted through California Business & Professions Code section 17200, et seq.; and (11) all claims for violation of Labor Code section 226.8, arising out of the Labor Code violations referenced in the Operative Complaint in the Action. (¶6.3)

.

The Class #1 and Class #2 releases should not include any claims alleged in the PAGA notices. (Settlement Agreement, ¶¶6.2-6.3) Revise accordingly.

.

Participating
Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing

Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (¶6.4)

.

Aggrieved Employees #1 Release: For the duration of PAGA Period #1, all Aggrieved Employees #1 are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint in the Action, the Neely PAGA Notice, Palomo PAGA Notice, and the Lomeli PAGA Notice. (¶6.5)

.

Aggrieved Employees #2 Release: For the duration of PAGA Period #2, all Aggrieved Employees #2 are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint in the Action and the Neely PAGA Notice, Palomo PAGA Notice, and the Lomeli PAGA Notice. (¶6.6)

o

"Neely PAGA Notice" means Kyle Neely's letter dated July 23, 2021, to Defendant and the LWDA, providing notice pursuant to Labor Code section 2699.3 subd. (a). (¶1.32)

o

"Lomeli PAGA Notice" means plaintiffs Rebecca Reyes Lomeli and Danita Goss's [and Kyle Neely's] letter dated January 30, 2024, to Defendant and the LWDA, providing notice pursuant to Labor Code section 2699.3 subd. (a). (¶1.29; Chang Decl., ¶8, Ex. 3.)

o

"Palomo PAGA Notice" means plaintiffs Roberto Palomo's letter dated January 25, 2024, to Defendant and the LWDA, providing notice pursuant to Labor Code section 2699.3

subd. (a). (¶1.40; Chang Decl., ¶7, Ex.
2.)

o
Because future
PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating
Class Members who are Aggrieved Employees are deemed to release the claims
identified in Paragraphs 6.5 and 6.6 of this Agreement and are eligible for an
Individual PAGA Payment and may not request exclusion from the PAGA portion of
the settlement. (¶8.5.4)

.
Named Plaintiffs
will additionally provide a general release and §1542 waiver. (¶6.1)

.
"Released Parties" means: Defendant, and each of
their former, present and future owners, parents, and subsidiaries, and all of
their current, former, and future officers, directors, members, managers,
employees, consultants, partners, shareholders, joint venturers, agents,
predecessors, successors, assigns, accountants, insurers, reinsurers, and/or
legal representatives. (¶1.45)

.
May conditional class certification be granted?

1. Standards

A
detailed analysis of the elements required for class certification is not
required, but it is advisable to review each element when a class is being
conditionally certified (Amchem Products,
Inc. v. Winsor (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a
different standard to determine the propriety of a settlement class as opposed
to a litigation class certification.
Specifically, a lesser standard of scrutiny is used for settlement
cases. (Dunk v. Ford Motor Co. (1996)
48 Cal.App.4th 1794, 1807 fn. 19.) Finally, the Court is under no "ironclad
requirement" to conduct an evidentiary hearing to consider whether the
prerequisites for class certification have been satisfied. (Wershba v. Apple Computer, Inc. (2001)

91 Cal.App.4th 224, 240.)

2. Analysis

a. Numerosity. There are approximately 1,560 Class Members. (Chang Decl., ¶52.) This element is met.

b. Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable through Defendant’s records. (Chang Decl., ¶51.)

c. Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Class Counsel contends that this litigation is brought to resolve common issues that include whether Defendant failed to pay for all hours worked; whether Defendant provided full, timely and un-interrupted meal and rest periods; whether Class Members are entitled to premium pay for incomplete, untimely or interrupted meal or rest periods, among other claims. (Chang Decl., ¶53.)

As to typicality, Class Counsel contends that Plaintiffs’ claims are typical of those of other Class Members as Plaintiffs: (1) were employees like other Class Members; (2) complain of not being paid for all time under Defendant's control or suffered and/or permitted to work for Defendant; (3) did not receive full premium pay for meal periods that were not compliant with the Labor Code; (4) did not receive premium pay for rest periods that were not provided, among other claims. (Chang Decl., ¶54.)

Finally, as to adequacy, Plaintiffs are represented by experienced counsel, do not have any conflicts of interest with other Class Members, and have been active in the litigation of the case. (Chang Decl., ¶59; see Declarations of Rebecca Reyes Lomeli, Danita Goss.)

d. Adequacy of class counsel. As
indicated above, Class Counsel have shown experience in class action
litigation, including wage and hour class actions.

e. Superiority. Given the relatively small size of the
individual claims, a class action appears to be superior to separate actions by
the class members.

CONCLUSION: The class may be conditionally certified
since the prerequisites of class certification have been satisfied.

.

Is the notice proper?

1. Content of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit
A. Its content appears to be acceptable. It includes information such as: a summary of
the litigation; the nature of the settlement; the terms of the settlement
agreement; the proposed deductions from the gross settlement amount (attorney
fees and costs, enhancement awards, and administration costs); the procedures
and deadlines for participating in, opting out of, or objecting to, the
settlement; the consequences of participating in, opting out of, or objecting
to, the settlement; and the date, time, and place of the final approval
hearing.

The Notice will be mailed to Class
Members in English and Spanish. (¶1.15)

Address
the following issues in the Notice:

o According
to the header on the Notice: “As an hourly, non-exempt employee who works or
worked for Los Angeles LGBT Center in California, you are entitled to receive
money from a class action settlement.”
(Notice, p. 1.) This definition
does not encompass the definition of Class #2, as set forth in the Settlement
Agreement at ¶1.7.

o The
definition of Class #2 set forth on pages 1-3 of the Notice is inconsistent

with the definition set forth in the Settlement Agreement at ¶1.7. Review and address this inconsistency.

o The
definition of Aggrieved Employee #2 set forth on pages 1-3 of the Notice is
inconsistent with the definition set forth in ¶1.5 of the Settlement Agreement. Review and address this inconsistency.

o The Notice
does not include any information about the procedures for submitting a
workweek/pay period dispute.

o The
release language presented in the Notice should match verbatim the release
language presented in the Settlement Agreement.
Here, the Notice omits the language set forth in ¶6.4 of the Settlement
Agreement. Moreover, the language of the
Aggrieved Employee #1 and #2 Released Claims slightly differs from the language
set forth in ¶¶6.5 and 6.6 of the Agreement.

o Revise the following
sentence for clarity: “Please note that you cannot both object to the
Settlement and opt out of the Settlement. If you exclude yourself, then your
objection will be overruled. If the Court overrules your objection, you will be
bound by the Settlement and will receive your Settlement Share.” (Notice, p. 6.) Clarify that if a Class Member does not opt
out and objects to the settlement, but the objection is overruled, then the
Class Member will be bound by the settlement and will receive a share of the
settlement.

2. Method of class notice.

Class
Data: Not later than 21
days after the Court grants Preliminary Approval of the Settlement, Defendant
will deliver the Class Data to the Administrator, in the form of a Microsoft
Excel spreadsheet. (¶5.2)

Notice will be mailed. Using
best efforts to perform as soon as possible, and in no event later than 14 days
after receiving the Class Data, the Administrator will send to all Class
Members identified in the Class Data, via first-class United States Postal
Service (“USPS”) mail, the Class Notice with Spanish translation. Before

mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database.
(¶8.4.2)

Not
later than 3 business days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and
re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶8.4.3) The deadlines for Class Members' written
objections, Challenges to Workweeks and/or Pay Periods, and Requests for Exclusion will be extended an additional 15 days beyond the 45 days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed. The Administrator will inform the Class Member of the extended deadline with the re-mailed Class Notice. (¶8.4.4)

Notice
of any changes to the date, time, and location of the Final Approval Hearing and the Final Judgment will be posted on the administrator's website. (¶8.8.1)

3. Cost of class notice. As
indicated above, settlement administration costs are estimated to be $16,500. Prior to the time of the final fairness
hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

.

Attorney fees and costs

CRC
rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to $823,333.33 (1/3 of GSA) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs (capped at $60,000) sought by detailing how they were incurred.

.

Incentive Award to Class Representative

The named Plaintiffs will request an enhancement award of $15,000 ($7,500 to each named Plaintiff). In connection with the final fairness hearing, each Plaintiff must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. Plaintiff must explain why he or she "should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class." (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with "nothing more than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.' Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was 'necessary to induce [the named plaintiff] to participate in the suit . . . .'" (Id. at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement award at the time of final approval.

. . . .

LOS ANGELES SUPERIOR COURT, COMPLEX CIVIL DEPARTMENT

CHECKLIST FOR

PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Department: SSC-11

RE: Roberto Armando Palomo v. Los Angeles LGBT Center (Case No. 24STCV02011)

In reviewing your motion for preliminary approval of class action settlement, the Court orders further briefing on the items checked below.

The additional briefing shall be due by ____________________________________, 2026. Note: if briefing is not filed by said date the hearing will be placed off calendar. Your hearing date set for ______________, is continued to the first available date of _________ at _____ in Department 11.

This checklist provides direction on what information and argument the court requires to grant a motion for preliminary approval of a class action settlement. All parties are urged to carefully review the checklist and fully comply with each item that applies to the case in order that the motion may be promptly ruled upon. The content of the motion should follow the same order as this checklist, as that is how the judge and research attorney review the motion.

You should also consider using the form wage and hour settlement agreements now available on the court's website at https://www.lacourt.org/forms/all – "Civil Forms" section. With input and unanimous consensus from an Ad Hoc Wage and Hour Committee (chaired by Judge Hogue and Judge Cunningham and comprised of 8 plaintiff's attorneys and 8 defense attorneys), the court has posted: (1) a form class action settlement agreement, (2) a form class action/PAGA settlement agreement, (3) and a form PAGA settlement agreement. Using these forms should cut down on attorney negotiation time and reduce the lag time between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also expedite the court's review process and help reduce the current backlog on hearings. These forms are encouraged but entirely optional.

I.
MOVING PAPERS (Motion and Declarations)

All facts submitted for the court to consider must be provided in the form of a declaration or other admissible evidence. The court will not consider facts stated only in the motion.

A. Introductory Information

¿ Summary of the litigation, including identity of the parties, brief procedural history, claims asserted, and general factual basis for the claims.

B. Dunk/Kullar Analysis

¿ Summary of the case, including the legal and factual basis for each claim. (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 133 (Kullar); Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 409.)

¿ Summary
of the investigation and discovery conducted, including the specific documents reviewed prior to agreeing to settle the case. (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802,
as modified Sept. 30, 1996 (Dunk).) If counsel's analysis was informed by a data sample, show that the sample is statistically reliable.

.

Class Counsel states that Defendant
produced "a sampling of time and payroll records for putative Class Members." (Chang Decl., ¶15.) Provide more information regarding the sample, such as the percentage of data reviewed.
Demonstrate that the sample is statistically reliable.

¿ Summary of settlement
negotiations, including when the settlement was reached, and

whether the
parties were assisted by a mediator. (Dunk, supra, 48 Cal.App.4th at p. 1802.)

¿ A
summary of the risks, expenses, complexity, and duration of further litigation if the

settlement is not
approved.

¿ A
summary of the risks of achieving and maintaining class action status.

¿
Specific information sufficient for the court to make an independent determination that the consideration being received for the release of class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation. (Kullar, supra, 168 Cal.App.4th at 129.) This discussion should specify the maximum realistic recovery of each claim asserted in the operative complaint, defenses asserted by Defendant, and any other relevant factors justifying the amount offered in settlement. If the settlement is predicated on a payment plan or is predicated on defendant's financial situation, admissible evidence of Defendant's

financial situation should be provided, including appropriate financial documents such as a balance sheet, statement of cash flows, profit and loss statement, and the like.

¿ If
approval of the settlement of class claims is requested together with approval of non-class claims (such as claims under the Labor Code's Private Attorney General Act (PAGA)) discuss why the amount allocated to the non-class claims is fair to those affected. See Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 77 (Moniz).

C. Class
Certification

¿
Numerosity: Total number of members in the settlement class and number of members in each sub-class (if applicable).

¿
Ascertainability: The manner by which members of the class will be identified and when. (Noel v. Thrifty Payless (2019) 7 Cal.5th 955.)

¿
Community of Interest: Discuss specific facts showing that the proposed class representatives have claims or defenses typical of the class and can adequately represent the class. (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

¿
Adequacy:

Class Counsel: A summary of Class Counsels' experience
and a listing of all prior cases in which each named Class Counsel has been approved by a court to act as lead or co-counsel. (See Dunk, supra, 48 Cal.App.4th at p. 1802.)

Class Representative(s): Provide evidence that each
proposed class representative has agreed to act as same and understands his or her responsibilities. (See Soderstedt
v. CBIZ Southern California, LLC (2011) 197 Cal.App.4th 133, 155-156; Jones

v. Farmers Ins. Exchange (2013) 221 Cal.App.4th 986, 998-999).

D. Claim
Requirement (if applicable)

¿ If
class members are required to submit a claim to receive compensation, explain why a claim form is necessary and either 1) provide an estimate of the anticipated claims rate or 2) provide an explanation why a claims rate cannot be provided.

¿ Provide
a detailed explanation why a “claims made” settlement is appropriate in this case.

¿ Indicate
what actions class counsel will take to encourage claim submission.

¿ Explain
why the claims process is not so burdensome that relief would be inaccessible to class members (if applicable).

E. Miscellaneous

¿ If
appropriate, explain why the settlement includes terms that are outside the scope of the operative complaint. (Trotsky v. Los Angeles Fed. Savings & Loan Assn. (1975) 48 Cal.App.3d 134, 148.) If approval of settlement of a PAGA claim is requested provide a copy of Plaintiff’s notice letter to the LWDA.

¿ If
notice will be given in English only, explain why this is sufficient.

¿ A
statement of any affirmative obligations to be undertaken by the class member or class counsel and the reason for such obligations.

¿ Provide
information regarding any fee splitting agreement and whether the client has

given written approval. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Rules Prof. Conduct, rule 1.5.1; Cal. Rules of Court, rule 3.769.)

¿ Any agreement that has injunctive relief against a class representative generally is not appropriate in a class action case. Provide the authority and factual reasons why this case is an exception. See Moniz, supra, 72 Cal.App.5th at 84. ("[T]he preclusive effect of a prior judgment is determined by the court in which it is asserted, not the court that rendered it." (Fireside Bank Cases (2010) 187 Cal.App.4th 1120, 1131 [115 Cal. Rptr. 3d 80].))

¿ Explanation as to why any class representative enhancement is reasonable, including what the class representative did beyond the expected services of any class representative. (Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 412; Radcliffe v. Experian Information Solutions Inc. (9th Cir. 2013) 715 F.3d 1157, 1165.) In PAGA settlements explanation should be provided as to why an incentive award is appropriate.

SETTLEMENT AGREEMENT

The settlement agreement should address the following:

A. The Basics

¿ Class definition. If a PAGA representative action is settled with a proposed Class Settlement consider whether there should be separate definitions for Class Members and Aggrieved Employees.

.

According to the Escalator Clause set forth in ¶8.1 of the Settlement Agreement: "[i]n the event the total number of Workweeks worked by Class #1 during Class Period #1 and by Class #2 during Class Period #2 collectively increases by more than 10%, or 18,341 Workweeks, then Defendant shall have the option, in its sole discretion, to: (1) increased [sic] the Gross Settlement Amount proportionally by the number of Workweeks in excess of 201,758 Workweeks multiplied by the Workweek Value; or (2) end both Class Period #1 and Class Period #2 on the date that the number of Workweeks worked by the Class #1 during Class Period #1 and by Class #2 during Class Period #2 reaches 201,758." The parties must resolve any uncertainty regarding the Class/PAGA Periods prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the administrator must review and verify the workweek total and confirm the end dates of the Class/PAGA Periods, revise the Class and PAGA Period definitions if needed, and remove the period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are modified to match any alterations to the Settlement Agreement.

¿ Class and Release Period: If the class and release periods extend beyond the preliminary approval explain why this is appropriate.

¿ The definition of Class Counsel in the Settlement Agreement at ¶1.10 and the Proposed Order at ¶3 should include counsel Brandon M. Chang, whose declaration is submitted in support of the Motion.

B. Release of Claims

¿ Scope: The scope of any release given by class members must be defined with precision and clarity. Any released claims not presented directly in the operative complaint should be based on the facts alleged in the operative complaint. (See Amaro v. Anaheim Arena Mgmt. (2021) 69 Cal. App. 5th 521, 537 and FN. 5; Uribe v. Crown Building Maintenance Co. 70 Cal. App. 5th 986, 1005.)

. The Class #1 and Class #2 releases should not include any claims alleged in the PAGA notices. (Settlement Agreement, ¶¶6.2-6.3) Revise accordingly.

¿ Class cases which include a PAGA claim should have a separate release for the PAGA claim tied to the facts alleged in the notice given to the LWDA. Id.

¿ If PAGA and Class
Settlement: The Release and Notice should provide an explanation that released claims include all PAGA claims that could have been premised on the facts alleged in the Plaintiff's LWDA Letter and aggrieved employees will release PAGA claims even if class members request exclusion from the class. See Robinson v. Southern Counties Oil Co. (2020) 53 Cal.App.5th 476.

¿ A Civil
Code section 1542 waiver is generally not appropriate in a class action case as to the putative class members (if applicable). Provide the authority and factual reasons why this case is an exception. (Israel-Curley v. California Fair Plan (2005) 126 Cal.App.4th 123, 129; Salehi v. Surfside III Condominium Owners' Assn. (2011) 200 Cal.App.4th 1146, 1159–1161.)

¿ Release
Effective Date: Indicate the point in time at which the release will be deemed effective as to the absent class members. If the release will be effective before settlement funds are paid, explain why this is in the best interest of the class.

¿ Class
Data: If there are confidentiality provisions, explain why they are in the best interest of the Class and whether they will impede Class Counsel's ability to discharge fiduciary duties.

C. Monetary Terms of Settlement

¿
Settlement Amount: Indicate the amount of the gross settlement, how and when the

settlement will be paid, and information regarding
payment plan, if any. If a class claim is being settled with a PAGA claim the amounts allocated should be separated and paid only to the aggrieved employees.

¿
Deductions from the settlement fund: Indicate the amounts to be deducted from the gross settlement for attorneys' fees and costs, plaintiff incentive awards,

administrative costs, PAGA payment and allocation of award to LWDA and the parties, and any other existing deductions.

¿ If
there are subclasses, explain why the monetary distribution is fair to each subclass. Ensure there is a class representative who fits the definition of each subclass.

¿
Information about how attorney fees will be calculated. The percentage method, with or without a lodestar cross-check, may be used in common fund cases. (Laffitte v. Robert Half Internat., Inc. (2016) 1 Cal.5th 480, 503.) In other cases, counsel should fully brief how the fees are calculated.

¿ If
wages are involved, explain how Defendant’s share of taxes will be paid.

¿
Whether, and under what circumstances, amounts may revert to Defendant, and a

justification for such reversion (if applicable). (Cundiff v. Verizon California, Inc. (2008) 167 Cal.App.4th 718, 728–729.)

¿ Payment
Formula: Amount and manner of distribution of the compensation to each class member, including the estimated amount each class member will receive and the timeline on which payments will be issued.

¿ Tax
allocation of settlement payments.

¿ Nature
of injunctive relief (if any), and valuation of such relief.

D. Notice Administration

The following
issues regarding notice administration should be addressed in the settlement

agreement. A copy

of the proposed notice must be attached to the settlement agreement as an

exhibit.

¿
Indicate the administrator for the settlement and why the bid for
administration is fair.

¿ Provide
the qualifications and experience of the Administrator, including evidence that
the settlement administrator has procedures in place to protect the security of
class data and adequate insurance in the event of a data breach or defalcation
of funds.

¿
Indicate how/when the administrator will receive the class list.

¿
Indicate whether the list will be updated by the administrator prior to the
initial mailing by use of National Change of Address Registry.

¿ Provide
the deadline for the initial issuance of notice to class members.

¿ Ensure
the content of the notice complies with California Rules of Court, rule
3.766(d). In wage and hour cases the notice should indicate the specific amount
the class member will receive and how that amount was calculated. A separate
breakdown for PAGA payments should be provided. The terms of the release(s)
should be reflected in the Notice.

Address the
following issues in the Notice:

.

According to the header on the Notice: “As an hourly,
non-exempt employee who works or worked for Los Angeles LGBT Center in
California, you are entitled to receive money from a class action
settlement.” (Notice, p. 1.) This definition does not encompass the
definition of Class #2, as set forth in the Settlement Agreement at ¶1.7.

.

The definition of Class #2 set forth on pages 1-3 of
the Notice is inconsistent with the definition set forth in the Settlement
Agreement at ¶1.7. Review and address
this inconsistency.

.

The definition of Aggrieved Employee #2 set forth on
pages 1-3 of the Notice is inconsistent with the definition set forth in ¶1.5
of the Settlement Agreement. Review and
address this inconsistency.

.

The Notice does not include any information about the
procedures for submitting a workweek/pay period dispute.

.

The release language presented in the Notice should
match verbatim the release language presented in the Settlement Agreement. Here, the Notice omits the language set forth
in ¶6.4 of the Settlement Agreement.
Moreover, the language of the Aggrieved Employee #1 and #2 Released
Claims slightly differs from the language set forth in ¶¶6.5 and 6.6 of the
Agreement.

.

Revise the following sentence for clarity: “Please
note that you cannot both object to the Settlement and opt out of the
Settlement. If you exclude yourself, then your objection will be overruled. If
the Court overrules your objection, you will be bound by the Settlement and
will receive your Settlement Share.”
(Notice, p. 6.) Clarify that if a
Class Member does not opt out and objects to the settlement, but the objection
is overruled, then the Class Member will be bound by the settlement and will
receive a share of the settlement.

¿ Ensure
the notice accurately reflects the Court’s current social distancing procedures
for attendance at hearings and review of court files. (Counsel should check the
Court website for most current information.)

¿
Indicate how and when payments will be processed.

¿ Indicate
how notices returned to the administrator as undeliverable will be handled.

¿Explain
how re-mailed notices, if any, will be handled. Will class members who receive re-mailed notices be given an extended deadline to respond (i.e., opt-out, object, and dispute workweeks)?

¿ Explain
how notice of any change of the date or location of the hearing will be given.

¿
Indicate whether there will be a settlement website. If so, provide the URL.

¿ If
publication notice will be given indicate the timing, locations, and manner by which publication notice will be disseminated.

¿
Explain how notice of final judgment will be given to the class. (Cal. Rules of Court, rule 3.771(b)) (e.g. Posted on administrator’s website.)

E. Responses to Notice

¿
Description of the procedures for submitting written objections, requests for exclusion, claim forms (if applicable) and disputes to estimated payments.

¿
Indicate the deadline to submit objections, requests for exclusion, claim forms (if applicable), and/or disputes to workweeks. Confirm the deadline is reasonable and that class members who receive re-mailed notices will be given an extension.

¿ The
objection procedure should be the same as the opt-out procedure, with the only

requirement being that objections be mailed to the settlement administrator and not filed with the court.

¿ Do not
include language indicating that class members may only be heard at final approval if they have complied with all objection procedures or that they must use specific language to request exclusion, or, if a specific procedure is sought, explain why it is necessary. In
general, the court will hear from any class member who attends the final approval hearing and asks to speak regarding his or her objection.

F. Cy Pres Distribution

¿
Indicate the length of time from issuance for which settlement checks will remain valid.

¿ Identify
the fund to which uncashed checks will be directed and detail the steps that will be taken to ensure compliance with Code of Civil Procedure section 384. The Court's Omnibus Trailer Bill of 2018 replaced the language of the prior statutory distribution scheme under Code of Civil Procedure, section 384 with a requirement that the Court re-open judgments following the final distribution of funds to include the cy pres in the judgment and to include the unclaimed amount, plus an unspecified amount of interest. Such information should be actively contemplated/provided for within the current terms of the settlement.

¿ Explain
why the cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. (State of California v. Levi Strauss & Co. (1986) 41 Cal.3d 460, 472; In re Microsoft I-V Cases (2006) 135 Cal.App.4th 706, 722; Nachshin v. AOL, Inc. (9th Cir. 2011) 663 F.3d 1034, 1038–1041; Dennis v. Kellogg Co. (9th Cir. 2012) 697 F.3d 858, 865; Code Civ. Proc., § 384.)

¿
Provide declarations by all parties and counsel disclosing any interest or involvement (or lack thereof) in the governance or work of the cy pres recipient.

G. MISCELLANEOUS

¿ Assure the Settlement Agreement and Notice
are consistent and that the Settlement Agreement (including revised versions) has
been signed by all parties and counsel. Carefully proofread both.

Ensure that there are no typographical
errors in the Settlement Agreement or Notice, including, but not limited to the
following:

.

According to ¶1.37 of the Agreement, “PAGA Penalties”
will be “allocated 25% to Aggrieved Employees #1 and Aggrieved Employees #2 ($37,5000.00)
and the 75% to the LWDA ($112,5000.00) in settlement of PAGA claims.”

.

According to ¶2.6 of the Agreement, Palomo filed the
FAC on February 2, 2024. Correct the
date to April 2, 2024.

.

According to page 3 of the Notice, “Defendant denies
all of the allegations made by Plaintiffs and deny that they violated any law.”

¿ The
Settlement Agreement and paperwork derivative thereof should not suggest that
the end result of court approval will be dismissal of the Action with prejudice
or entry of a Final Judgment and Order dismissing with prejudice all claims.
See
California Rules of Court, rule 3.769(h).

III. EXHIBITS TO
THE MOTION

¿
Provide proof of submission of the proposed settlement agreement to the LWDA.
(Lab. Code, § 2699, subd. (l)(2).)

¿ Include
a proposed Judgment, which should not include a dismissal or any findings not

contained in the Final Approval Order. (Cal. Rules of Court, rule 3.769(h).)

¿ All
exhibits should be bookmarked, as set forth in the Presiding Judge’s First Amended General Order of May 3, 2019 re: Electronic Filing, available on the Court website.

If the Settlement Agreement is modified pursuant to this
checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties and counsel. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms.

Modify notice to match any alterations to the Settlement
Agreement.

Date: August 10, 2026
____

JUDICIAL
OFFICER